

STATE OF NEW YORK

8559--A

2025-2026 Regular Sessions

IN SENATE

October 29, 2025

Introduced by Sens. KAVANAGH, KRUEGER -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to the aggravated harassment of a rent regulated tenant

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of subdivision 2 of section 241.05 of
2 the penal law, as added by chapter 573 of the laws of 2019, is amended
3 to read as follows:

4 With intent to induce two or more rent regulated tenants occupying
5 different housing accommodations in one residential building, or two
6 rent regulated tenants occupying different housing accommodations in two
7 separate residential buildings, to vacate such housing accommodations,
8 such owner intentionally engages in a systematic ongoing course of
9 conduct that:

10 § 2. The penal law is amended by adding a new section 241.07 to read
11 as follows:

12 § 241.07 Aggravated harassment of a rent regulated tenant.

13 An owner is guilty of aggravated harassment of a rent regulated tenant
14 when:

15 1. With intent to induce three or more rent regulated tenants occupy-
16 ing different housing accommodations in two or more residential build-
17 ings to vacate such housing accommodations, such owner intentionally
18 engages in a systematic ongoing course of conduct that:

19 (a) impairs the habitability of such housing accommodations; or

20 (b) creates or maintains a condition which endangers the safety or
21 health of one or more of the dwellings' rent regulated tenants; or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) is reasonably likely to interfere with or disturb, and does inter-
2 fere with or disturb, the comfort, repose, peace or quiet of one or more
3 of such rent regulated tenants in their use and occupancy of such hous-
4 ing accommodation including, but not limited to, the interruption or
5 discontinuance of essential services.

6 2. Such owner commits the crime of harassment of a rent regulated
7 tenant in the first degree as defined in section 241.05 of this article
8 and has previously been convicted within the preceding five years of
9 such crime.

10 The good faith commencement and pursuit of a lawful eviction action by
11 an owner against a rent regulated tenant in a court of competent juris-
12 isdiction shall not, by itself, constitute a "systematic ongoing course of
13 conduct" in violation of paragraph (c) of subdivision one of this
14 section.

15 Aggravated harassment of a rent regulated tenant is a class D felony.

16 § 3. Section 241.00 of the penal law is amended by adding a new subdi-
17 vision 4 to read as follows:

18 4. "Residential building" shall mean a structure built upon an iden-
19 tifiable borough-block-lot or section-block-lot number that contains
20 multiple dwelling units, at least one of which is subject to the regu-
21 lations and control of residential rents and evictions pursuant to the
22 emergency housing rent control law, the local emergency housing rent
23 control act, the emergency tenant protection act of nineteen seventy-
24 four, the New York city rent and rehabilitation law or the New York city
25 rent stabilization law of nineteen hundred sixty-nine. The definition of
26 "residential building" as used in this subdivision shall be applicable
27 only to the provisions of this article and shall not be applicable to
28 any other provision of law.

29 § 4. This act shall take effect immediately.